November 2026 General Municipal Election



CITY ATTORNEY'S IMPARTIAL ANALYSIS OF CITY OF SUNNYVALE MEASURE G

CITY ATTORNEY'S IMPARTIAL ANALYSIS STARTS HERE→

This measure would amend Sunnyvale City Charter Section 1309 to allow the City to use alternative methods to select contractors for public works contracts, and authorize the City Council to establish, by ordinance, any regulations for the award, use, evaluation, and approval of these contracts.

The Council placed this measure on the ballot on recommendation by a Charter Review Committee of appointed Sunnyvale residents.

Currently, Section 1309 of the Sunnyvale City Charter requires the City to use a traditional system for awarding public works contracts, known as "design-bid-build." This method requires separate contract awards for the design and construction phases of the project. Unless there is a recognized exemption, such as emergency work, the City first contracts with architects or engineers to design the project. After the project design is completed, the City then advertises the completed design for construction bids, and finally awards the construction contract to the lowest "responsive and responsible" bidder. This competitive bidding process is based on the bid price alone and does not permit the City to consider the construction contractor's qualifications, technical experience, or other factors, so long as the contractor meets the minimum requirements.

The Sunnyvale Charter does not allow any other project delivery methods for procuring and contracting work for public works projects, even when those methods are permitted by state law. For example, two alternatives are "design-build" and "construction manager-at-risk." Under a design-build approach, the design and construction phases are combined into a single contract, and a single entity is responsible for both the design and construction of a public works project. Further, the City would select a contractor through a qualifications-based process that can take into account various factors other than the lowest bid. Under a construction manager-at-risk approach, the City would hire a construction manager to perform both pre-construction and construction management services within a guaranteed maximum price (GMP), and the construction manager would be responsible for any construction costs that exceed the GMP.

This measure would authorize the City Council to choose alternative options for the delivery of public works construction projects so long as those options are allowed by California law. The measure would authorize the Council to adopt ordinances regulating the award, use, evaluation, and approval of public works contracts using such alternative methods. In addition, this measure would make clarifying changes to some existing language in Section 1309 without altering the meaning.

A "YES" vote amends the Charter so that the Council can authorize the use of alternative project delivery methods for public works contracts and make clarifying changes to the wording of Charter Section 1309.

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A "NO" vote would not add any options to use alternative project delivery methods for public works contracts and would not change the wording of Charter Section 1309.

This amendment will become effective if a majority of those voting on the measure vote "yes."

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Rebecca L. Moon
City Attorney

To obtain copy of Measure G, call the elections official at 408-730-7483 and a copy will be provided at no cost to you.

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By [redacted]